

# **Smt. Poonam Alias Pinki vs Amit Kumar Alias Monu on 31 October, 2022**

**Author: Sunita Agarwal**

**Bench: Sunita Agarwal**

HIGH COURT OF JUDICATURE AT ALLAHABAD

Court No. - 39

Case :- FIRST APPEAL No. - 501 of 2009

Appellant :- Smt. Poonam Alias Pinki

Respondent :- Amit Kumar Alias Monu

Counsel for Appellant :- Shiv Nath Singh, Anil Kumar Pathak, D.P.S. Chauhan, In Person

Counsel for Respondent :- A.B.N.Tripathi, A.N.Tripathi

And

Case :- FIRST APPEAL No. - 86 of 2021

Appellant :- Poonam Jaiswal @ Pinki

Respondent :- Amit Kumar Jaiswal Alias Monu

Counsel for Appellant :- In Person

Counsel for Respondent :- A.B.N.Tripathi, Nitin Chandra Mishra, Tarun Kumar Mishra

And

Case :- FIRST APPEAL No. - 907 of 2021

Appellant :- Amit Kumar Jaiswal Alias Monu

Respondent :- Smt Poonam Jaiswal Alias Pinki

Counsel for Appellant :- Nitin Chandra Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Sadhna Rani (Thakur),J.

1. These three connected appeals are matrimonial appeals arising out of the divorce suit filed under Section 13 of the Hindu Marriage Act, 1955 and the matrimonial petition under Sections 25 and 27 of the said Act.

2. Heard Ms. Poonam Jaiswal, wife in person and Sri Nitin Chandra Mishra, learned counsel appearing for the husband in three connected appeals.

3. The First Appeal no.501 of 2009 (Smt. Poonam Alias Pinki vs Amit Kumar Alias Monu) is directed against the judgment and order dated 14.05.2008 passed by the Principal Judge, Family Court, Kanpur Nagar in Matrimonial Petition no.636 of 2005 whereby instead of granting decree of divorce under Section 13 of the Hindu Marriage Act, the Family Court had granted the decree of judicial separation under Section 10 of the Hindu Marriage Act.

4. The First Appeal no.86 of 2021 (Poonam Jaiswal @ Pinki vs Amit Kumar Jaiswal Alias Monu) has been filed by the wife challenging the judgment and order dated 04.12.2020 passed by the Family Court in Case no.1589 of 2011 under Sections 25 and 27 of the Hindu Marriage Act, partly allowing the wife's plea for grant of permanent alimony and maintenance to the tune of Rs.5 lacs.

5. The First Appeal no.907 of 2021(Amit Kumar Jaiswal Alias Monu vs Smt. Poonam Jaiswal Alias Pinki) is cross appeal filed by the husband challenging the award of permanent maintenance of Rs.5 lacs in the aforementioned case no.1589 of 2011 filed by the wife.

6. In all these cases, the wife has put in appearance in person whereas the husband is represented by Sri Nitin Chandra Mishra learned Advocate. As the dispute between the parties began with the institution of matrimonial petition no.529 of 2002 renumbered as 636 of 2005 under Section 13 of the Hindu Marriage Act by the husband, and the disputes in all three appeals are linked, these appeals were heard together and are being decided by this common judgment.

7. For convenience, the judgment is divided into four portions in the headings as under:-

(i) Judicial Separation Decree;

(ii) The divorce decree;

(iii)The plea of permanent alimony and maintenance;

(iv) Final relief.

8. For the sake of convenience, the wife is referred as appellant and the husband as respondent in the entire judgment.

#### 1. Judicial Separation Decree

9. The Matrimonial Petition no.529 of 2002 under Section 13 of the Hindu Marriage Act was filed by the respondent husband on 08.10.2002 before the Civil Court, at Jaunpur. On the application moved by the appellant wife, the suit was transferred to the Family Court at Kanpur Nagar and it was re-registered as Matrimonial Petition no.636 of 2005, decided vide judgment and order dated 14.5.2008 passed by the Principal Judge, Family Court, Kanpur Nagar. The divorce petition was filed by the husband with the assertion that the marriage between the parties was solemnized on 16.04.2000 at his house located at Mohalla Vishesharganj Shahjahanpur Road, Jaunpur in accordance with the rituals of Gyatri Pariwar. After marriage the appellant wife started living with the respondent husband. The father of the appellant wife was Engineer whereas the father of the respondent husband was a business man at the time of marriage. However, the respondent was not doing any job and was studying. The status of the respondent at the time of marriage was that of a student and the expenses of his education were being borne by his parents. The only source of income of the family was the business of the father of the respondent husband who also had other children. It was, thus, contended in the petition itself that the respondent husband had no source of income and the only bread earner of the family was his father. The appellant wife, however, was a stubborn woman, she started misbehaving with her husband soon after the marriage. She used to abuse the respondent and his family on petty issues and threaten to commit suicide to falsely implicate the entire family of the respondent husband.

10. It was stated that the appellant wife stayed in her matrimonial house only for about 10-15 days after marriage and went back to her paternal house (Maika). During the period of stay, no conjugal relationship had been established between the parties. The appellant wife used to deprive the respondent of sexual pleasure. After much persuasion, the appellant though came back to her matrimonial home but refused to reside with the family of the respondent and put a condition before him that she would stay with the respondent husband only if he had separated from his parents. It was not possible for the respondent husband to accede to the said condition as he had no source of income at that point of time. Upon denial, the appellant went back to her paternal home again. The emphasis was on the allegation that no conjugal relations have been established between the couple.

11. It was further stated that when the respondent tried to persuade the appellant on telephone to come back, she threatened to implicate him in false cases by committing suicide. Despite that the respondent went to her Maika (parental home of the appellant) to bring her back. There, he saw the appellant in the company of an unknown person and when he asked the appellant he was told by her that the said person was her paramour and since their matrimonial relationship had come to an end she was trying to spend her life with her paramour. The respondent then came back to his house at Jaunpur. It was also stated that while leaving for her Maika at Kanpur Nagar, the appellant took her jewellery, sarees and other personal belongings along with Rs.10,000/- Cash, gold ring, gold sikdi and a watch belonging to the respondent husband. On 22.02.2001, the respondent husband gave a

notice of divorce to the appellant through his Advocate and filed complaints before the Superintendent of Police, Jaunpur and Collector, Jaunpur, but there was no change in the behaviour of the appellant.

12. It would not be out of place to note, at this juncture, that in none of the paragraphs of the plaint while making the above allegations, the respondent had given any date as to when the appellant had left her matrimonial home to go to her Maika. No date, month or time has been mentioned by the respondent to indicate as to when he went to the paternal house (Maika) of the appellant to bring her back. The assertions noted above are vague in so far as the act of the appellant in leaving her matrimonial home.

13. As per the statement made in the divorce petition, a notice dated 22.02.2021 was sent to the petitioner informing her to grant decree of divorce. After 22.02.2001, on receipt of the notice, the appellant came to her matrimonial home along with her parents and threatened the respondent. An application was then given by the respondent husband at the Police Station-Jaunpur stating that the appellant made an effort to commit suicide by pouring kerosene oil on herself. In the inquiry made by the police, the appellant had admitted her guilt and pleaded remorse. It is further stated in para-'15' of the divorce petition that no conjugal relationship had been established between the parties during the period of two days when the appellant stayed in her matrimonial home after receipt of the notice dated 22.02.2001.

14. It was further contended by the respondent in the divorce petition itself that he tried to persuade the appellant to live along with him but she refused to accompany him and put a condition that he would have to reside separately from his parents, which condition could not be accepted by the respondent.

15. The contention, thus, is that the respondent husband had suffered mental cruelty on account of the actions and the conduct of the appellant and that the appellant had deserted the respondent husband for about 1½ years without any reason, and she had illicit relationship with an unknown person.

16. It was further stated that the relationship between the parties had been brought to an end with the deed dated 07.07.2002 which was signed by both the parties but the execution of the said deed was refused by the appellant just to harass the respondent. The respondent was, thus, constrained to file the divorce petition. The cause of action for filing the divorce petition as stated therein arose on 20.08.2002, when the appellant had refused to acknowledge the written deed of divorce and further on 05.10.2002 when she had finally refused to acknowledge the written deed of divorce.

17. Before proceeding further, we may record that the suit was not entertainable as the cause of action as stated in the divorce petition was not legally sound. The petition under Section 13 of the Hindu Marriage Act, could not be based on a mutual consent decree. The refusal to acknowledge the written deed of divorce, allegedly executed on 07.07.2002, by the appellant wife could not have given a cause of action for institution of the divorce suit, on the ground of the desertion and cruelty.

18. The record further indicates that after institution of the divorce suit on 06.08.2003, the appellant wife filed an application under Section 24 of the Hindu Marriage Act for maintenance for herself and her child as also the expenses of the proceedings. It was stated therein that the appellant was legally wedded wife of the respondent and a female child aged about two years, named as Isha was born out of their wedlock, who was also residing with the appellant wife. The prayer had been made to provide maintenance of at least Rs.5,000/- per month for the wife and the child as the appellant had no source of income. As regards the source of income of the respondent husband, it was stated therein that the respondent owned two business:-

(i) Shivam Hotel at Jaunpur which was being used as marriage hall; and

(ii) Raj Iron Stores at Jaunpur.

19. The objection to the said application was filed by the respondent along with his affidavit dated 22.01.2007 wherein it was stated that the appellant could seek legal aid to bear the expenses of litigation. As regards the interim maintenance, it was stated that an amount of Rs.2,800/- per month fixed by the Family Court vide order dated 30.08.2006 passed under Section 125 Cr.P.C, both for the appellant and her daughter. In a revision filed before this Court, 25% of the said amount had been stayed and the remaining was being paid by the respondent. The respondent, in rebuttal, contended that the statement made in the application under Section 24 about the business owned by him was incorrect and that he was doing a job in a cloth shop at the salary of Rs.3,000/- per month. The application under Section 24 of the Hindu Marriage Act was decided by the Family Court at Kanpur Nagar vide judgment and order dated 31.07.2007 whereby Rs.2,000/- was fixed towards interim maintenance for the appellant wife, wherefrom the amount awarded under Section 125 Cr.P.C was adjusted.

20. We have noted the above facts to place on record that after the decision on the application under Section 24 of the Hindu Marriage Act, the appellant wife had filed her written statement in the divorce suit on 18.09.2007. In rebuttal of the above noted statements in the divorce petition, it was categorically stated by the appellant wife in her written statement that the respondent husband was engaged in the family business and was a partner to the extent of 25%, which fact was evident from the Income Tax Return of the respondent and the Audit report. The statements in para-'9' and '10' of the divorce petition that the appellant did not stay in her matrimonial home for long and had not established sexual relationship were categorically denied in the written statement. It was stated by the appellant wife that she went to her Maika at Kanpur Nagar only for about four days after marriage for vidai and came back with the respondent on 24.04.2000. A female child named Isha was born out of the wedlock on 16.07.2001 and the said fact was admitted by the respondent husband in his affidavit filed in the proceedings under Section 125 Cr.P.C. The statement that no conjugal relationship had been established between the parties had, thus, been refuted categorically by the wife.

21. It was further stated that the appellant was residing in her Maika at Kanpur Nagar since 12.12.2001, as the respondent had tried by all means to get rid of the appellant, whereas the appellant had never misbehaved with the respondent or her in-laws. The averments that the

appellant took all her cash and jewellery and even articles belonging to the respondent were categorically denied in the written statement. A categorical statement was made that no written deed was signed by her on 07.07.2002, and her signature, if any thereon were forged. No cause of action arose for filing of the divorce suit. The divorce suit was, thus, liable to be dismissed.

22. In his replication, the respondent husband did not deny the statement in para-'4' of the written statement that he was partner of 25% of share in the family business. He, however, stated that the statements made in para-'4' of the written statement of the wife were not true as stated, in as much as, by the mere fact that he was made partner in his father's business, it could not be said that he had an independent business or source of income. About the birth of the girl child, there was admission of the respondent in his replication. The respondent, however, tried to explain that the parties had cohabited only for once in September, 2000 and as a result of their relations, the girl child was born but stated that the appellant had refused to discharge her wifely duties thereafter, which had caused mental cruelty to the respondent. The allegations about the appellant wife leaving her matrimonial home frequently were reiterated in the replication and a prayer was made for grant of decree of divorce because of the attitude and behaviour of the appellant wife in going to her Maika without intimating the respondent, giving threat to commit suicide, not discharging matrimonial obligations, abusing the respondent and his family and also having illicit relationship with another man.

23. In evidence, the respondent husband and the appellant wife had entered in the witness box as P.W-1 and D.W-1; respectively. The respondent husband as P.W-1 in his affidavit in the examination-in-chief had reiterated the statements made in the divorce petition and further added that the appellant wife had filed a criminal case on 02.05.2003 under Section 498A IPC read with Section 3/4 of the Dowry Prohibition Act and another criminal case no.73 of 2005 under Section 307 IPC against the respondent husband and his relative on false grounds wherein final reports had been submitted by the police and the case was pending before the competent court. A case under Section 125 Cr.P.C was also filed by the appellant which indicated that she did not want to reside with the respondent. It was, thus, contended that the action of the appellant in filing false criminal case against the respondent husband had resulted in mental cruelty. It was further stated in the examination-in-chief by the respondent husband that on 22.3.2004, he got prepared a deed for mutual consent divorce, and two drafts of Rs.3,00,000/- in the name of the appellant and Rs.2,00,000/- for the daughter were got prepared. But the said proposal was turned down by the appellant in order to achieve her illegal means.

24. It was also contended that the appellant had refused on 20.08.2002 to maintain the matrimonial relations with the respondent and lastly on 05.10.2002 which gave the cause of action to the respondent to institute the divorce petition.

25. In cross, the respondent had admitted that he had studied only upto B.Sc Ist year and had left his studies thereafter. It was, however, not disclosed as to when he had left his studies. It is, thus, noteworthy, at this juncture that the statement in the divorce petition that at the time of marriage, respondent husband was the student and was dependant upon his father for his basic needs and education expenses was proved to be false from his statement in the replication as also the cross

examination. The absence of the source of income in the divorce petition being the reason for commencement of the dispute between the couple soon after the marriage, could not be established by the appellant.

26. On his statement of refusal of the appellant wife to establish sexual relations, when crossed, the respondent husband stated that he could not explain as to why the important fact of birth of the girl child was concealed in the divorce petition. The respondent was put to cross about the notice dated 22.02.2001, sent by him to the appellant through his Advocate and he admitted that when the said notice was sent, his wife namely the appellant herein was residing in her matrimonial home itself. The respondent was also put to cross about his statement of not doing any job or source of income at the time of marriage, he admitted that he was the partner of 25% in the business of the firm. He was also confronted about his illicit relationship with another women and that because of the said relations, he wanted to seek divorce so that he could perform second marriage.

27. As D.W-1, the appellant wife had stated in examination-in-chief on affidavit about the birth of her daughter on 16.07.2001 and the behaviour of the respondent with her. It was categorically stated that she never went to her paternal home as against the wishes of the respondent and the allegations against her in that regard were false and concocted.

28. In cross, she stated that she went to her paternal home from Jaunpur on 12.12.2001 and from marriage till 12.12.2001 she remained in her matrimonial home at Jaunpur. About the financial status of the respondent and his family, it was stated by the appellant as D.W-1, in cross, that the respondent had an Esteem car in his name at the time of marriage. About the criminal case lodged under Section 498A, she stated that she had lodged the said case on 27.3.2003 and had also filed a protest petition to challenge the final report. However, in case under Section 307 IPC, she did not file protest petition after submission of the final report. The appellant was confronted about the time of the lodging of the case under Section 307 IPC and stated that she was residing in her Maika (paternal home) at the time of the institution of the said case. It was stated by D.W-1 (appellant) that on 25.1.2004, she went to her in-laws but the house was found locked.

29. The appellant, however, expresses her willingness and wishes to continue the matrimonial relationship by stating that she was still ready and willing to go with the respondent and would withdraw all the cases filed by her, in case the respondent was willing to give her status of his wife. The suggestion that she had filed criminal cases in retaliation to the divorce suit was categorically denied by the appellant. The wife had stated that she never wanted to seek divorce from the respondent and had it been so, why would she contest the divorce suit.

30. In light of the pleadings and evidence on record, we may proceed to examine the correctness of the judgment and decree dated 14.05.2008 passed by the Family court in the divorce petition filed in the year 2002 under Section 13 of the Hindu Marriage Act.

31. The Family Court had framed two issues. The first issue was as to whether the behaviour of the appellant towards the respondent was of cruelty as stated in the divorce petition and the second issue as to what relief the respondent/petitioner was entitled to.

32. While deciding issue no.1, the allegations of cruelty, against the appellant herein the Family Court had noted that the admitted fact of the matter was that the parties got married on 16.04.2000, a girl was born out of marriage on 16.07.2001 and the appellant was residing in her paternal home (Maika) since 12.12.2001. It was, thereafter, noted that there were allegations and counter allegations of the parties with regard to the behaviour of the appellant with her husband and his family.

33. The allegation made by the appellant in the application 34(Ga) filed on 22.01.2007 that the respondent had remarried with another girl was turned down with the finding that no proof of the second marriage was brought in the Court and in the cross examination a suggestion was given to the respondent that he had filed the divorce suit in order to perform second marriage which itself contradicted the version of the wife in the said application. Further, the rival allegations made by the respondent against the appellant, his wife that she had illicit relationship with an unknown person was also rejected with the finding that it was not acceptable in absence of any proof in that regard.

34. The Family Court had further proceeded to note that the appellant had admitted in her cross examination that the respondent owned an Esteem car at the time of marriage and, therefore, her allegation that there was a demand for Maruti Zen Car in dowry was questionable. It has further proceeded to note that the criminal cases under Sections 498A and 307 IPC were lodged by the appellant while she was residing in her paternal home, after filing of the divorce suit. Further in her cross examination, the appellant had stated that she was ready and willing to withdraw those case, if the respondent was willing to keep her with him. An adverse inference was, thus, drawn by the Family Court to the said statement of the wife to conclude that the allegations levelled by the wife in the criminal cases of demand of dowry and attempt to kill, against her husband namely the respondent herein were false and those cases were filed to put undue pressure upon the respondent. Further noticing that the appellant wife had admitted that she did not want to enter into any compromise and the situation with regard to the matrimonial dispute had not been changed with the passage of time, a conclusion was drawn that the allegations levelled by the appellant wife against her husband of second marriage and illicit relationship and her behaviour and conduct had resulted in causing mental cruelty to the respondent husband. We may record that while concluding so, the Family Court had completely ignored that the divorce petition itself was filed with incomplete and twisted facts.

35. As noted above, the allegations in the divorce petition that the appellant wife had refused to discharge her matrimonial obligations and no sexual (conjugal) relationship had been established between the parties were proved to be false with the disclosure made by the wife in the written statement itself that a girl was born out of the wedlock within 1½ years of marriage. Thus, it was proved that the factum of the birth of the girl child was conveniently concealed by the respondent/petitioner.

36. The allegation in the divorce petition that the denial of sexual (conjugal) relationship on the part of the wife had resulted in mental cruelty, thus, was demolished on its own. The other contentions in the divorce petition with regard to the threat or attempt of suicide made by the appellant wife were neither pressed into service nor had been established by the respondent.



37. It was also established from the admission in the cross examination of the respondent that on the date of the divorce notice dated 22.1.2001, sent to the appellant wife at her parent's address, within one year of marriage, the appellant wife was residing in her matrimonial home itself. This was such an important fact, which according to us, could not have been ignored by the Family Court while deciding the issue of mental cruelty in favour of the respondent. The Family Court though noted the admission of the respondent on the above noted issues, i.e. birth of the girl child, and the factum of the wife staying in her matrimonial home on the date of the notice dated 22.2.2001, but it had conveniently chosen not to express any opinion upon the same.

38. Once it was proved that the divorce petition itself was based on the false allegations and concealment of material facts and the notice seeking divorce dated 22.2.2001 was sent to the appellant wife at her parent's address at the time while she was residing in her matrimonial home, there was no occasion for the Family Court to take into consideration any subsequent event. The divorce petition, itself, was liable to be thrown away on the above grounds, in as much as, it is settled law that a person who approaches the Court of law has to come with clean hands. Any concealment or twisted facts disentitle a person from seeking any indulgence in the Court of law.

39. Apart from that, we may record that the respondent husband in the divorce petition stated that he was unemployed and was a student at the time of marriage and even at the time of filing of the divorce petition, but from the averments in the written statement and the cross examination of the respondent, as noted above, it was established that the said statement of the respondent was also false.

40. In the aforesaid situation, we are unable to accept the approach of the Family Court in deciding the issue no.1 about the cruelty against the appellant wife. The facts on record rather reflected that the respondent husband had committed cruelty on his wife by throwing her and his minor daughter out of his house, keeping them away from their home and letting them survive on their own without any financial support. The divorce petition was filed within 2½ years of marriage and the motive of filing the divorce petition is evident from the statement in the petition itself where the first notice seeking divorce was sent to the appellant on 22.2.2001 at her parent's address, while she was residing in her matrimonial home. The plea of the written deed of divorce dated 7.7.2002 allegedly executed between the parties in the divorce petition further reflects the mindset of the respondent that he was making all efforts to get rid of the appellant by all means. In fact from the cause of action as stated in the divorce petition, noted above, it is evident that no cause of action was available to the respondent to institute the divorce petition. The divorce petition was liable to be dismissed, at the threshold, as the respondent could not make out a cause of action to institute the petition.

41. As regards the criminal cases lodged by the appellant wife, we may record that the submission of the final report by the police when the cases were pending before the Court of law could not be a reason to hold that the allegations made by the wife therein were false. The fact that those cases were filed after filing of the divorce suit during the period when the appellant was residing in her paternal home (Maika) has no relevance in so far as the merits of the allegations made therein. As is evident from the order of the Family Court itself the protest petition was pending in the matter under Section 498A whereas the final report filed in the case under Section 307 IPC was under

consideration before the competent court of law at the time of the decision in the divorce suit.

42. In any case, the assertions of the wife, in cross, that she was ready to withdraw the criminal cases and forgive her husband, in case he was willing to keep the appellant as his wife, could not have been viewed against the appellant. It is evident that the said statement was made by the appellant at the time of her cross examination in the year 2007 where she had stated that for the sake of her minor daughter she was ready to compromise with her husband. The Family Court had completely misdirected itself in reading the said statement of the appellant wife against her and drawing adverse inference of lodging of false criminal cases by the appellant.

43. All the reasonings given by the Family Court to arrive at the conclusion of cruelty on the part of the wife, in favour of the respondent husband, are the result of misreading of the evidence on record and complete ignorance of the own conduct of the respondent husband who was the petitioner before it. The findings on issue no.1 of mental cruelty against the appellant wife returned by the Family Court are, thus, liable to be set aside. The decree of judicial separation passed under Section 10 of the Hindu Marriage Act by the Family court in lieu of the divorce decree under Section 13 of the Hindu Marriage Act is, thus, held to be illegal.

44. We may record that the Family Court has committed a grave error of law in granting the decree of judicial separation in absence of any evidence to establish the ground of cruelty agitated by the respondent which could be a ground for seeking the divorce decree.

45. The casual approach of the Family court in passing the decree of judicial separation ignoring the conduct of the respondent husband has resulted in further ordeal of the wife and her minor daughter. Having being thrown out of the life of her husband, having a minor daughter, the appellant wife had been left with no alternative but to stay with her parents at Kanpur Nagar. The Family Court though recorded that the judicial separation decree was passed with a view to save the future of the girl child but it has not made any arrangement for them to survive completely ignoring the fact that the wife and the minor child had no financial resources to feed themselves. The appellant wife had been left without any maintenance for herself or her minor child while living separately under a judicial decree. The act of the Court, in this case, had caused serious prejudice to the appellant and her minor daughter.

46. Further, in the appeal before us, the delay was condoned after issuance of notice to the respondent and the appeal was admitted on 7.7.2009. The parties were directed to appear in person and efforts of reconciliation were made by this Court. The appeal was once dismissed for want of prosecution on 22.12.2015 and was restored on 5.8.2019. The appellant was appearing in person and she had been provided Rs.10,000/- towards travelling expenditure by order dated 4.12.2019 only once, which order was also sought to be recalled by the respondent. The order sheet indicates that only a meagre amount of Rs.1,500/- pursuant to two orders dated 4.12.2019 and 11.12.2019 was paid to the petitioner towards travelling expenditures. No interim maintenance has been paid to the wife during the pendency of the appeal, only a meagre amount of Rs.2,800/- which had been fixed both for the wife and the child in the proceeding under Section 125 Cr.P.C was the financial support from them during the litigation.

## 2. Divorce decree dated 15.5.2010

47. Adding to the ordeal of the appellant wife, a divorce petition under Section 13 of the Hindu Marriage Act was filed by the respondent on 15.5.2009, soon after expiry of the period of one year of the passing of the judicial separation decree dated 14.5.2008. The said suit registered as case no.556 of 2009 had been decreed exparte on 15.5.2010 by the Family Court, Kanpur Nagar with the finding that during the period of about two years from the passing of the judicial separation decree dated 14.5.2008, the parties could not establish their conjugal relationship. It was noted that though the appeal against the judicial separation decree was pending consideration before this Court but since the parties were living separately from the year 2001 and there was no sign of restoration of matrimonial relationship between them, the marriage between the parties became dead and it was not possible for them to live together under one roof as husband and wife. While noting so, the Family Court had also noted that the evidence on record established that the reason for long separation of the parties was the act of cruelty on the part of the appellant wife and desertion without any reason. It was, thus, concluded by the Family Court that only option left with it was to grant the decree of divorce exparte in favour of the respondent.

48. We may record that while passing the exparte decree of divorce dated 15.5.2010, the Family Court had completely ignored that the judicial separation decree, which was subject matter of challenge before this Court in the appeal could not have been made basis to grant the decree of divorce, on the ground that restoration of conjugal relationship between the parties was not possible. The finding that the cruelty committed by the appellant was the reason of long separation of the parties is wholly uncalled for, in as much as, the allegations pertaining to cruelty, during the marriage, which was the basis of the judicial separation decree dated 14.5.2008, were subject matter of challenge before this Court at that point of time.

49. On both the above count, the exparte divorce decree dated 15.5.2010 could not have been passed by the Family Court. Further, reasoning in the divorce decree dated 15.5.2010 that there was no possibility of compromise between the parties to live in a peaceful conjugal relationship was in ignorance of the fact that the respondent husband, who was the petitioner therein, was guilty of desertion of his wife without any reasonable cause and he could not have been given benefit of his own wrong. The findings returned by the Family Court in the exparte decree dated 15.5.2010 of desertion and cruelty on the part of the appellant wife are without any basis being not based on discussion of any evidence brought before it. From any angle, even if the divorce suit had proceeded exparte, the decree of divorce could have been passed only on the ground alleged by the respondent/petitioner who had approached the Family Court. In absence of any independent evidence brought by the respondent, discussed in the judgment and order dated 15.5.2010, the exparte divorce decree mainly based on the allegations noted in the judicial separation decree dated 14.5.2008 is unsustainable in the eye of law.

50. The record, however, indicates that after getting knowledge of the exparte decree of divorce, the appellant wife had filed a recall application under Order 9 Rule 13 CPC supported with Section 5 application. The Family Court had refused to condone the delay in filing the recall application by noticing that the recall application was filed beyond the limitation of 30 days and further that an

order was passed by this Court for expeditious disposal of the said matrimonial case no.556 of 2009. There is no discussion in the order dated 28.05.2011 of reason of rejection of Section 5 application on the plea taken therein. Further, it was noted by the Family Court while rejecting the application under Section 5 of Limitation Act as also the recall application under Order 9 Rule 13 CPC, that the respondent husband had remarried after a period of 90 days of the passing of the exparte decree and the marriage registration certificate of the second marriage was produced in the Court. While rejecting the application under Order 9 Rule 13 CPC, it was, thus, recorded by the Family Court in the judgment and order dated 28.5.2011 that after remarriage of the respondent, there was no occasion for the Family Court to recall the exparte decree of divorce dated 15.5.2010.

51. The original record summoned by us indicates that the application under Order 9 Rule 13 CPC was filed by the wife on 9.7.2010 but it was not accompanied with Section 5 application. The order sheet indicates that on 17.7.2010, on the application under Section 5 of the Limitation Act filed by the wife, notice was issued and 8.9.2010 was fixed for objection. Notice sent to the respondent was returned back with the report dated 3.8.2010 that he was not met at his house. On 8.9.2010, the appellant was asked to do fresh Pairvi. In the meantime, the respondent had performed second marriage on 9.9.2010.

52. We may record that the Divorce Suit no.556 of 2009 was transferred from Kanpur Nagar to Etawah, the notice of transfer of the case intimating the date fixed as 13.05.2010 sent to the appellant wife was served upon her on 12.5.2010.

53. A perusal of the order sheet from the original record indicates that on 13.5.2010, in the absence of the appellant, the matter was directed to proceed exparte and the next date fixed was on 14.5.2010. The matter was heard exparte on 14.5.2010 and order was passed on 15.05.2010.

54. It is, thus, evident that the respondent had succeeded in getting an exparte decree of divorce and he had performed second marriage during the pendency of the recall application by avoiding notices sent at his correct address on 3.8.2010.

55. With the second marriage of the respondent, it seems that the appellant wife had given up her hope to seek justice in the matter of dissolution of marriage. She though pursued the first appeal filed against the judicial separation decree but chose not to challenge the exparte divorce decree dated 15.5.2010. The application under Sections 25 and 27 of the Hindu Marriage Act was then filed by the appellant wife before the family court seeking permanent alimony and entire "Streedhan" as per Section 14 of the Hindu Succession Act. The said application was registered as Matrimonial Case no.1589 of 2011 and was partly allowed by the Family Court vide judgment and order dated 04.12.2020 granting only Rs.5,00,000/- (5 lacs) towards permanent alimony and maintenance. The Family Court had denied the relief under Section 27 of the Hindu Marriage Act on the ground that the list of articles provided by the appellant was not supported by any receipt and the receipts which had been filed by the appellant were of total Rs.1,71,000/- and in those receipts, there was no receipt of the purchase of gold and silver jewellery. No documentary evidence had been produced to establish the gifts or cash given by the father of the appellant during the marriage ceremony. The First Appeal no.86 of 2021 had, thus, been filed by the appellant herein.

56. The respondent husband has also filed the First Appeal no.907 of 2021 challenging the grant of Rs.5,00,000/- (5 lacs) as permanent alimony. We may record, at this stage, that though we have found serious legal flaws in the exparte divorce decree dated 15.5.2010 granted by the Family Court but in view of the stand of the appellant in the Appeal no.86 of 2021 and the written argument supplied by the appellant herself before us, as the appellant is not pressing her claim for setting aside the exparte decree of divorce, at this stage, we deem it just and proper not to set aside the exparte judgment and decree of divorce dated 15.5.2010.

57. The claim pressed by the appellant (appearing in person) in the written argument supplied by her is that she is entitled for the return of Streedhan. From the material on record of the proceeding of permanent alimony, the wife claimed alimony not only for herself but for her minor daughter as well before the Family Court, who has now become major without any support of her father.

58. Noticing the said facts, in view of the stand of the appellant wife, we are now proceeding to decide the issue for grant of permanent alimony and Streedhan to the appellant in view of Section 25 and 27 of the Hindu Marriage Act.

3. Issue of Permanent alimony, of Stree-dhan Section 25 and 27.

59. On the issue of permanent alimony and maintenance before proceeding further, it would be apt to take note of the statutory provisions. Section 25 and 27 of the Hindu Marriage Act relevant for our purposes are noted herein. Section 14 of Hindu Succession Act, 1956 would also be relevant to be noted as the appellant is demanding 'Streedhan' as her absolute property being a female Hindu. The above noted relevant provisions are as under :-

"25. Permanent alimony and maintenance .

(1) Any court exercising jurisdiction under this Act may, at the time of passing any decree or at any time subsequent thereto, on application made to it for the purpose by either the wife or the husband, as the case may be, order that the respondent shall 55 [\*\*\*] pay to the applicant for her or his maintenance and support such gross sum or such monthly or periodical sum for a term not exceeding the life of the applicant as, having regard to the respondent's own income and other property, if any, the income and other property of the applicant 56 [, the conduct of the parties and other circumstances of the case], it may seem to the court to be just, and any such payment may be secured, if necessary, by a charge on the immovable property of the respondent.

(2) If the court is satisfied that there is a change in the circumstances of either party at any time after it has made an order under sub-section (1), it may at the instance of either party, vary, modify or rescind any such order in such manner as the court may deem just.

(3) If the court is satisfied that the party in whose favour an order has been made under this section has re-married or, if such party is the wife, that she has not remained chaste, or, if such party is the husband, that he has had sexual intercourse with any woman outside wedlock, 57 [it may at the instance of the other party vary, modify or rescind any such order in such manner as the court may deem just]."

"27 Disposal of property. In any proceeding under this Act, the court may make such provisions in the decree as it deems just and proper with respect to any property presented, at or about the time of marriage, which may belong jointly to both the husband and the wife."

"14. Property of a female Hindu to be her absolute property:-

(1) Any property possessed by a female Hindu, whether acquired before or after the commencement of this Act, shall be held by her as full owner thereof and not as a limited owner.

Explanation.--In this sub-section, "property" includes both movable and immovable property acquired by a female Hindu by inheritance or devise, or at a partition, or in lieu of maintenance or arrears of maintenance, or by gift from any person, whether a relative or not, before, at or after her marriage, or by her own skill or exertion, or by purchase or by prescription, or in any other manner whatsoever, and also any such property held by her as stridhana immediately before the commencement of this Act.

(2) Nothing contained in sub-section (1) shall apply to any property acquired by way of gift or under a will or any other instrument or under a decree or order of a civil court or under an award where the terms of the gift, will or other instrument or the decree, order or award prescribed a restricted estate in such property".

60. Reading of Section 25 of the Hindu Marriage Act indicates that on an application for the purpose of seeking permanent alimony, made by either of the spouse (wife or the husband), the Court at the time of passing the decree or at any time subsequent thereto, pay maintenance and support to the applicant, which may be gross sum or monthly or periodical payment. The factors which are required to be considered for just determination of permanent alimony and maintenance as indicated in the provision are:-

- (i) the respondent own income and other property,
- (ii) the income and other property of the applicant,
- (iii) the conduct of the parties,
- (iv) other circumstances of the case.

61. It is also provided therein that in case, it may seem to be just and proper, in order to secure the payment, if necessary, the Court may credit a charge on the immovable property of the respondent.

62. In light of this legal provision, we may consider the judicial pronouncement holding the field of permanent alimony. The Apex Court in a recent decision of Rajnesh Vs Neha reported in (2021) 2 SCC 324 has exhaustively considered the maintenance laws under various enactments namely the Hindu Marriage Act, 1955, the Hindu Adoption and Maintenance Act, 1956, Special Marriage Act, 1954. Section 125 of Cr.P.C., Protection of Women from Domestic Violence Act, 2005. It was noted therein that the maintenance laws have been enacted as a measure of social justice to provide relief to dependant wife and children for their financial support so as to prevent them for falling into destitution and vagrancy. It was observed that Article 15(3) of the Constitution of India reinforced by Article 39 of the Constitution of India, envisages a positive role for the State in fostering change towards the empowerment of women, which has led to enactment of various legislations from time to time. The maintenance may be claimed under one or more of the aforementioned statutes since each of the enactments provides an independent and distinct remedy framed with a specific object and purpose. It was observed that a party is not precluded from approaching the Court under one or more enactments. It was, thus, concluded that in order to overcome the issue of overlapping jurisdiction, and avoid conflicting orders being passed in different proceedings, the applicant shall disclose the previous maintenance proceedings, and the orders passed therein, so that the Court would take into consideration the maintenance already awarded in the previous proceedings, and grant an adjustment or set off the said amount.

63. While noticing that there is a tendency on the part of the wife to exaggerate her needs, and, on the other hand, there is a corresponding tendency of the husband, to conceal his actual income, it was held that it has become necessary to lay down the procedure to streamline the proceeding, so as to provide financial support to the dependant wife who has no other source of income. It was, thus, mandated that a comprehensive affidavits of disclosure of assets and liabilities is required to be filed by the parties in all maintenance proceedings, including pending proceedings before the Family Court/District Court/ Magistrate' Court concerned, as the case may be, throughout the country. The declaration required to be made by the applicant and the respondent narrated in paras-72.2 (b) to 72.9 (i) of the said decision is noted as under:-

"72.2 (b) The applicant making the claim for maintenance will be required to file a concise application accompanied with the Affidavit of Disclosure of Assets;

72.9 (i) In case the parties belong to the Economically Weaker Sections ("EWS"), or are living Below the Poverty Line ("BPL"), or are casual labourers, the requirement of filing the Affidavit would be dispensed with."

64. On the permanent alimony, it was observed in paras-"73 to 76" as follows:-

"73. Parties may lead oral and documentary evidence with respect to income, expenditure, standard of living, etc. before the concerned Court, for fixing the permanent alimony payable to the spouse.

74. In contemporary society, where several marriages do not last for a reasonable length of time, it may be inequitable to direct the contesting spouse to pay permanent alimony to the applicant for the rest of her life. The duration of the marriage would be a relevant factor to be taken into consideration for determining the permanent alimony to be paid.

75. Provision for grant of reasonable expenses for the marriage of children must be made at the time of determining permanent alimony, where the custody is with the wife. The expenses would be determined by taking into account the financial position of the husband and the customs of the family.

76. If there are any trust funds/investments created by any spouse/ grandparents in favour of the children, this would also be taken into consideration while deciding the final child support."

65. On the criteria for determining quantum of maintenance, it was observed therein that there is no straight jacket formula for fixing the quantum of maintenance to be awarded. However, the factors which would weigh with the Court have been discussed in para-'78' as under:-

"78. The factors which would weigh with the Court inter alia are the status of the parties; reasonable needs of the wife and dependant children; whether the applicant is educated and professionally qualified; whether the applicant has any independent source of income; whether the income is sufficient to enable her to maintain the same standard of living as she was accustomed to in her matrimonial home; whether the applicant was employed prior to her marriage; whether she was working during the subsistence of the marriage; whether the wife was required to sacrifice her employment opportunities for nurturing the family, child rearing, and looking after adult members of the family; reasonable costs of litigation for a non-working wife."

66. Taking the note of the decision in *Manish Jain vs Akansha Jain* reported in (2017) 15 SCC 801, it was noted in *Rajnesh* (supra) that the financial position of the parents of the applicant wife would not be material while determining the quantum of maintenance. It is no answer to the claim of maintenance that the wife is educated and could support herself. The Court must take into consideration the status of the parties and the capacity of the spouse to pay for her or his support.

67. To determine the financial capacity of the husband, his actual income, reasonable expenses for his own maintenance, and dependant family members whom he is obliged to maintain under law, liabilities if any, would be required to be taken into consideration to arrive at the appropriate quantum of maintenance to be paid. The Court must have due regard to the standard of living of the husband, as well as the spiraling inflation rates and high costs of living. The plea of the husband that he does not possess any source of income ipso facto does not absolve him of his moral duties to maintain his wife if he is abled bodied and has educational qualifications.

68. It was, thus, observed in para-'81' as under:-



"81. A careful and just balance must be drawn between all relevant factors. The test for determination of maintenance in matrimonial disputes depends on the financial status of the respondent, and the standard of living that the applicant was accustomed to in her matrimonial home. The maintenance amount awarded must be reasonable and realistic, and avoid either of the two extremes i.e. maintenance awarded to the wife should neither be so extravagant which becomes oppressive and unbearable for the respondent, nor should it be so meagre that it drives the wife to penury. The sufficiency of the quantum has to be adjudged so that the wife is able to maintain herself with reasonable comfort."

69. Amongst various factors, depending upon factual situation of the case, few factors which are required to be considered as narrated therein are:-

(a) Age and employment of parties

70. In this regard, it was noted that where the parties have endured the relationship for long duration, the fact that with the advancement of age, it would be difficult for a dependant wife to get an easy entry into all workforce after the break of several years.

(b) Maintenance of minor children

71. It was noted in paragraphs-'91' and '92' of the judgment that the living expenses of the child which would include expenses for food, clothing, residence, medical expenses, education of children. Extra coaching classes or any other vocational training courses to complement the basic education must be factored in, while awarding child support. The education expenses of the children must be normally borne by the father. However, the amount fixed towards such expenses should be a reasonable amount and not only an overly extravagant amount which may be claimed.

72. Keeping in mind of the factors enumerated by the Apex Court in the matter of determination of permanent alimony, when we examined the record of the First Appeal no.907 of 2021 filed by the respondent husband, we may note the order dated 22.11.2021 passed by this Court therein:-

"The present appeal is directed against the judgement and order dated 04.12.2020 whereby an amount of Rs. 5 lacs in lump-sum has been granted to the respondent-wife towards the permanent alimony under Section 25 read with Section 27 of the Hindu Marriage Act' 1955. It is admitted to the learned counsel for the appellant that both the parties are living separately since 2003 and the respondent-wife is looking after the girl child born out of the wedlock. A divorce suit was filed by the appellant wherein an exparte decree was passed on 15.05.2010.

In the application under Section 125 Cr.P.C. which was decided on 30.08.2006, only Rs.2000/- per month was fixed for the respondent-wife and Rs.800/- was directed to be paid to the minor daughter. The said amount had been enhanced only on 22.05.2019 and the enhanced amount of maintenance is Rs.2500/- for wife and

Rs.1500/- for the daughter. It is sought to be contended in paragraph No.'14' of the affidavit accompanying stay application that the appellant is paying maintenance to the respondent on monthly basis at the rate of Rs.4000/- per month.

We may note that for the arrears of maintenance enhanced with effect from the date of the application under Section 125 Cr.P.C. on 22.05.2019, the affidavit is completely silent. The fact as to whether the appellant had paid the entire arrears of maintenance in compliance of the order of this Court has not been disclosed.

The assertion in the affidavit with regard to the appellant being employed as daily wager and having no fixed source of income is also vague. No detail with regard to the earning of the appellant such as bank statement, the certificate of the employer as proof of income has been appended. The non-disclosure of the source of income by the appellant-husband both in family court and in the present appeal leads to an adverse inference that the appellant is guilty of concealment of his correct financial status.

Learned counsel for the appellant, at this stage, states that the girl child has now attained majority and she has also started working on her own.

This assertion made in the open Court is not supported by any material on record. At least, this is admitted to the appellant that his daughter had become major without his support, as Rs.800/- which she was getting uptill the year 2019 was too meagre to bear her educational expenses leave aside other expenses such as food, clothing and extra curriculum activities.

For all the aforesaid facts, though we do not find it a fit case to entertain but in order to ascertain the facts narrated in the affidavit today, we provide an opportunity to the learned counsel for the appellant to file a supplementary affidavit to bring on record the details of maintenance paid by him to his wife and daughter. Out of Rs.5 lacs awarded towards permanent alimony, Rs.2 lacs shall be deposited before the family court and an affidavit of compliance to that effect shall also be filed by the next date fixed.

Put up this matter as fresh on 08.12.2021. "

73. It may be noted that despite the observation made in the order dated 22.11.2021 with regard to the assertions made in the affidavit filed by the respondent husband (in the first appeal filed by him) being vague, no supplementary affidavit giving details with regard to the income of respondent has been filed in the first appeal filed by the respondent husband in order to sustain his challenge to the award of permanent alimony to the tune of Rs.5,00,000/- by the Family Court.

74. We may note, at the cost of repetition that both the rival parties are contesting the matter on the validity of the decision of the Family Court in determination of permanent alimony. The contention

of the respondent husband is that the wife is not entitled for any maintenance whereas the wife is seeking enhancement in the maintenance determined by the Family court.

75. At this stage, the entitlement of the appellant wife for permanent alimony in light of her status on account of the dispute between the parties is to be considered first. The stand of the appellant wife and the respondent husband both is that the appellant would fall within meaning of the "divorced wife" after the divorce decree dated 15.5.2010 passed under Section 13 of the Hindu Marriage Act in Case no.556 of 2009.

76. We may also record, at the cost of repetition, that though we reached at the conclusion that the judicial separation decree dated 14.5.2008 is illegal and set aside the same and that the exparte divorce decree dated 15.5.2010 suffers from grave error of law, but in view of the fact that appellant wife had given up her claim to challenge the exparte divorce decree dated 15.5.2010 after the recall application filed by her was dismissed on 28.5.2011, we hold that the appellant wife being a 'divorced women' would fall within the meaning of an applicant under Section 25 of the Act who claimed permanent alimony and maintenance subsequent to the passing of the divorce decree. The claim put forth by the appellant wife to seek permanent alimony and maintenance after getting the decree of divorce has to be examined on merits. Even otherwise, as per own admission of the respondent, he has contracted second marriage after getting the exparte decree and for this reason the wife had given up her claim for restitution of marriage. We find that for this reason also, the appellant wife is entitled for permanent alimony. The question now remains is for determination of quantum.

77. In light of the said dispute, keeping in mind of the provisions of Section 25 of the Hindu Marriage Act, 1955 as also the legal pronouncement pertaining to the field, in the facts of the present case, following factors are required to be considered to adjudicate the dispute:-

(i)conduct of the parties.

(ii) income of the parties.

78. Besides the above, there are other circumstances of the case which are to be taken into consideration for determination of permanent alimony.

79. As noted above, the conduct of the parties is one of the factors enumerated under Section 25 of the Hindu Marriage Act, 1955 which is to be taken into consideration for determining the permanent alimony and maintenance claimed by one of the spouses. We, therefore, proceed to examine the conduct of the respondent viz a viz the appellant wife. The income of the parties namely the applicant and the respondent is also to be considered for the purpose.

(i)Conduct of the respondent

80. As discussed above, the respondent husband had filed the divorce suit on 08.10.2002 within 2½ years of the marriage, solemnized on 16.4.2000. The divorce suit registered as Case No.529 of 2002

was filed on the allegations of cruelty and desertion by the wife with the plea that the appellant had refused to discharge her wifely duties. The denial of conjugal relations, frequent visit to her paternal home, threat to commit suicide and extramarital affair of the wife were the grounds to seek divorce, which as discussed above, have been proved to be false. The assertion in the divorce petition about absolute denial of conjugal relations by the wife on account of her superiority complex and extramarital affair soon after marriage were proved false with the filing of the written statement itself, wherein the factum of the birth of a female child out of the wedlock within 1½ years of marriage had been disclosed by the wife. The respondent in replication took a U-turn and stated that physical relationship between them was established only for once. However, in the cross examination, the respondent gave a vague reply as to why the factum of birth of the female child was concealed by him in the divorce petition. The main ground of divorce with the plea of mental cruelty on account of denial of conjugal relations on the part of the wife, thus, turned out to be false.

81. Prior to the filing of the divorce petition, as per own contention of the respondent, he had sent a notice dated 22.2.2001 through his Advocate at the address of the father of the appellant stating that the appellant went away to her Maika with all her 'Streedhan', jewellery, sarees and clothes along with cash, gold rings, and watch belonging to the respondent. It is proved from the record, in the cross examination of the respondent itself, that on the date of the said notice the appellant wife was residing in her matrimonial home. The Modus Operandi adopted by the respondent in sending the notice of the divorce at the address of the father of the appellant wife, while the wife was residing in her matrimonial home, is reflection of the deceitful means adopted by the respondent to seek divorce. The respondent husband further stated in the divorce petition that on 07.07.2002, a mutual agreement had been arrived between the parties where they had agreed to live separately and exchanged belongings of each other. This assertion was categorically denied by the wife in her written statement with the claim that her signature on the said document was forged. The said agreement, however, was not proved by the respondent. In replication, the respondent came out with the case that he had prepared an agreement in writing on 22.3.2004 regarding dissolution of marriage where he had agreed to pay maintenance of Rs.3,00,000/- for his daughter and the Rs.2,00,000/- for the wife and also prepared two drafts, but the appellant had refused to accept the same. After completion of exactly one year from the decree of judicial separation passed on 15.5.2009, the respondent filed another suit for divorce and got an exparte decree dated 15.5.2010.

82. During the pendency of the recall application filed by the appellant wife, the respondent husband had performed second marriage, by avoiding service of notice, with a girl who belongs to Siliguri (as is evident from the marriage certificate). The disclosure made by the respondent wife in the application dated 22.1.2007 before the Family Court in the first divorce suit namely Matrimonial petition no.529 of 2002 that she had received information from reliable sources that the respondent had performed second marriage with a girl who was resident of Siliguri and they were residing together, thus, proved to be correct.

83. In light of the above facts, it is evident that the respondent is guilty of desertion of his legally wedded wife soon after marriage and minor girl child since her birth. No concrete reason/ground for matrimonial dispute had been given by the respondent either in the divorce petition or in his evidence. The decree of judicial separation dated 14.5.2008 was obtained by the respondent by

pleading his case which was full of blatant lies. As the respondent had not come with clean hands before the Family Court, at the first opportunity, the judicial separation decree and the subsequent divorce decree granted by the Family Court are found to be illegal. Two human lives have been ruined by the respondent by adopting his deceitful means.

Income of the respondent-

84. Besides the above, the respondent had also lied about his financial status/resources. In the first divorce petition, he simply stated that he was a student at the time of marriage and also at the time of filing of the said divorce petition and his father was the only earning member of the family. Whereas, in the cross examination, respondent had admitted that he was partner of 25% share in the partnership business of the family and then stated that he was not doing any work since marriage. In the examination in chief, as noted above, the respondent had admitted that he did not complete graduation and studied only upto Bsc.I year. The year when he had studied B. Sc.Ist year had not been disclosed.

85. Further in the first divorce petition no.529 of 2002, as also in the petition under Section 25 of the Hindu Marriage Act, concrete evidence was brought on record by the appellant wife that two firms namely M/s R.K. Iron Stores and M/s S.K Iron Stores were the joint family business at the time of marriage. As per the documents filed by the wife, the firm M/s R.K Iron stores was in the partnership of Raj Kumar Jaiswal (brother of the respondent and his mother Vimla Devi). The firm M/s S.K Iron Stores was in the name of father of the respondent. There is an admission of the appellant that in the firm of his father, he was partner of 25% in the business though he sought to clarify that by being partner it would not mean that he was getting some income from the firm. At the time of cross examination of the appellant wife, a question was put to her that there was an Esteem Maruti car in the name of the respondent at the time of marriage and there is an admission of the respondent to the effect that the marriage of the parties took place in the house of the respondent at Mohalla Vishesharganj Jaunpur. The wife has also produced documents of ownership of Alto Car and two wheeler registered in the name of the respondent husband and it was admitted by the respondent that two wheeler was purchased by him, whereas the Alto Car was gifted by his in-laws of his second marriage. A place known as Shivam Hotel was found to be managed by the respondent and there was categorical case of the appellant wife that the business of Shivam Hotel was owned by the respondent. The document showing that the said business was being run/managed by the respondent husband has been placed on record by the appellant wife.

86. On the other hand, the respondent's bald statement in reply to the petition filed by the wife under Section 25 of the Hindu Marriage Act that he was merely a daily wage earner and had no means to maintain his first wife and daughter, is just a means to deny maintenance to the appellant and her child. The statement in the written statement filed by the respondent husband in the petition under Section 25 of the Hindu Marriage Act that his earning was only Rs.4,000/- per month being a daily wage earner, is liable to be rejected being vague and without any evidence. The respondent had deliberately concealed his actual source of income and other properties. Despite observation of the Court in the order dated 22.11.2021 in the first appeal no.907 of 2021 filed by the husband that he had not given any details of his earning such as bank statement, certificate of employment as proof

of income, no such proof has been filed even before us in the said appeal filed by the husband to challenge the order for fixation of permanent alimony to the tune of Rs.5,00,000/-. For the act of the husband in concealment of his actual income and making false statement from the beginning in all his petitions and replies filed before the Family Court as also this Court, an adverse inference has to be drawn against the respondent that he is guilty of concealment of his actual financial status.

(ii) Conduct of the wife and her income

87. On the other hand, the appellant wife in her first examination before the Family court in the divorce petition no.529 of 2002 stated that she was ready and willing to forego all the differences and withdraw all cases against her husband, provided he would give her status of his wife. The said statement was made by the appellant wife for the sake of her minor girl child before the Family Court. Before the mediation centre as well, during the pendency of the proceedings in the Family Court, the wife made the statement that she was ready to go with her husband but the husband was adamant for divorce and was not ready to take his wife with him at any cost. The judicial separation decree dated 14.5.2008 was though challenged by the wife but with the exparte divorce decree dated 15.5.2009, after dismissal of her recall application, due to the second marriage of the respondent, the appellant wife had given up hope to save her marital status and did not challenge the exparte decree of divorce dated 15.5.2010 for the said reason.

88. In the written argument before us also, she has pressed for permanent alimony for herself and her daughter pleading that after second marriage of the respondent, she is entitled for permanent alimony as per Section 25 of the Hindu Marriage Act. There is a categorical statement of the appellant wife that though she is educated but she has no means of income. We may not ignore the fact that the appellant wife is residing in her paternal home since 12.12.2001 and has looked after her daughter all alone since her birth. All energies of the appellant had been consumed over the years in litigation fighting for justice for herself and her daughter, contesting the false cases put forth by her husband. Besides meager amount of Rs.2,800/- which was fixed in the proceedings under Section 125 Cr.P.C, both for the child and the wife, she did not get any interim maintenance from the Family Court. Her application under Section 24 of Hindu Marriage Act was decided by the Family Court in a manner that she could not get any maintenance pendente lite besides the amount fixed under Section 125 Cr.P.C. The respondent had even challenged the fixation of the meagre amount of interim maintenance by filing the revision before this Court which was decided in the year 2019 and the interim amount was enhanced to the tune of Rs.2,500/- and 1,500/- for the girl child w.e.f, 25.5.2019. The appellant was not working at the time of marriage and she had not received any vocational education before the marriage. Her contention that she has no source of income could not be successfully challenged by the respondent, nor can be ignored by us.

(iii) Other circumstances of the case:-

89. Besides the above, there are other circumstances of the case which are required to be considered to adjudicate as to whether the wife is entitled for permanent alimony and maintenance. It is categorically stated by the appellant wife that she had been subjected to cruelty by the respondent before and after filing of the divorce petition. The appellant was dependant upon her father since

after 12.12.2001 when she started residing with her parents being deserted by the respondent. Her father had died on 06.12.2019 leaving behind the mother of the appellant and from her meager resources, the mother of the appellant is looking after the appellant and her girl child. The appellant was forced to contest the divorce petition and all her cases were argued by her, on her own, as she has no source of income. With great difficulty, she could manage to arrange fee for the education of her daughter from the pension received by her mother and the girl child namely Isha, the daughter of the couple, is pursuing LLB. The appellant had incurred all expenses of education of her daughter besides her other basic needs and there has been no contribution from the respondent, the father, in the upbringing of the girl child. The denial by the respondent to maintain his wife and daughter is based on false assertions. The contention that after second marriage the respondent has to bear the responsibility of his second wife and two children born out of the second wedlock, has no relevance for consideration in the matter of determination of permanent alimony to the legally wedded divorced wife. It is held by the Apex Court in Rajnesh (supra) that while fixing quantum of maintenance as permanent alimony, the age and employment of the parties, the income of the wife, maintenance for minor children are the factors which are relevant for consideration. On comparison of the status of the parties, the needs of the wife for herself and for her child who has been denied financial support from her father and adverse conditions faced by the wife due to the unscrupulous litigations filed by her husband in the Courts, we are of the considered view that the appellant wife is entitled for permanent alimony for herself and as also for her daughter who was minor at the time of filing of the application under Section 25 of the Hindu Marriage Act, in the year 2011. The fact that the daughter of the couple has become major during the pendency of the litigation without support of the father and the claim of the wife that she is entitled for the permanent alimony for the financial support given by her mother to her daughter is also to be considered.

90. The respondent husband is a business man, he has cleverly and cunningly concealed his actual source of income and took contrary stands with regard to his income at different point of time in the litigations between the parties over a period of 20 years.

91. However, before arriving at a reasonable amount of permanent alimony by realistic assessment considering the standard of living of the husband as well as the spiraling inflation rates and higher cost of living, we are also required to consider the second prayer of the wife in the application under Section 27 of the Hindu Marriage Act to return her Streedhan, of which she is an absolute owner. In the plaint of the matrimonial case no.1589 of 2011, a long list of dowry items including jewellery and furniture gifted in the marriage by the parents of the appellant has been given in Para-'9' of the plaint, which is relevant to be extracted hereinunder:-

|         |      |       |        |         |        |             |
|---------|------|-------|--------|---------|--------|-------------|
| "9-     |      |       |        | 1       |        | 17.910      |
|         | , 1  | 4.6   | , 1    |         | 8.3    | , 1         |
|         |      | 2.9   | 3      |         | i 3.88 | , 5.22,     |
| 6.53    | , 3  | (¢    | )      | i 16.12 | , 5.63 | , 3.25      |
|         | , ¢  | 47.74 |        |         | ¢ £    | 1,38,446.00 |
| □ 1     | ¢, 5 | ¥     | 83.500 | , 4     | f \$   | ¥           |
| 17.62   |      | ¢ ¥   | 40.60  | ¥       | ¢      | ¥           |
| 220.520 | , 1  | ¢ 250 | , 1    | ¥       | \$     | 300         |

₹ 922.22 , ₹ 55,000/- ₹ 10 ₹ 6,000/- 1  
6,780/-, 1, ₹ 4,500/- “ ( “ , ' f₹, f₹f ,  
f₹) 78,000/- 1 ₹ 13.100/-, « “ 8,790/-  
₹ ₹ 10,200/-, f ₹ 20,000/-,  
50,000/- 11,000/- ₹, ₹  
1,51,000/- ₹ ₹ > 1  
₹ ₹ > 1  
4 , 1 25 , 4 20 , 2  
₹ 7.60 , ₹ ₹ + § 300  
, ₹ ₹ < ₹ 1,82,000/- ₹  
₹ ₹ < ₹  
1,00,000/- ₹ ₹  
° > ' < ₹ 2  
, 1 ₹ , 1 , 4 , 4 ,  
- ₹ < ₹  
£ ° > "

92. In the written statement, the respondent had denied the description given by the wife in para-'9' extracted above by stating that the appellant had taken all her jewellery and Streedhan including the gold jewellery, cash given by the respondent side and expensive clothes at the time of leaving for her paternal home. However, there is no categorical denial of the items in the list especially household items like furnitures etc, gifted in the marriage as asserted in the above extracted para-'9'. The cash gifted in the marriage rituals by the appellant side has also not been categorically denied and only this much is stated that the appellant had no proof of the said gifts.

93. Relevant reply of the respondent in Para-'9' of his written statement be extracted hereunder:-

"9. - > ‡ ₹ « ₹ ₹ > « ₹  
< “ ₹ , “ f₹  
> ₹ ₹ £ < °  
₹ < ₹ ₹ ₹ + ₹ < °  
' ₹ ₹ ₹ ₹ < °  
§ £ ° > "

94. Further, the above version of the respondent in the written statement is proved to be wrong from the assertion in the notice dated 22.2.2001 which was admittedly sent at the address of the father of the wife when the wife was residing in her matrimonial home.

95. Further, as per own statement of the respondent in the divorce petition no.529 of 2002, as per the written agreement arrived between the parties dated 07.07.2002, a deed was signed between them and both the parties had agreed to live separately by exchanging their belongings, but later the said agreement was resiled by the wife.



96. The above statements made by the respondent in his divorce petition itself are self contrary and make the version of the respondent husband unreliable that the appellant wife had taken all her jewellery, clothes, gifted items including cash while going to her paternal home before filing of the divorce petition.

97. Apart from the above statement in her petition, along with an affidavit in the First Appeal no.86 of 2021, the appellant wife has filed the photographs of her marriage and that of the second wife of the respondent, with the categorical statement therein that the second wife of the respondent was wearing the same neckless which was gifted to the appellant in her marriage. No counter to the said affidavit filed by the appellant (in support of her appeal under Section 25 and 27 of the Hindu Marriage Act), has been filed by the respondent. The assertion of the appellant in her affidavit filed before this Court, thus, remained uncontroverted.

98. We are, therefore, of the considered opinion that even in light of the evidence before the Family Court and categorical pleading, the appellant wife had proved that she is entitled for return of the 'Streedhan, the valuables gifted by her parents, in-laws and relatives in her marriage. In view of the contradictions in the statement of the respondent husband, it is evident that all articles gifted to the appellant wife, which constitute her Streedhan (of which she is absolute owner), are still in possession of the respondent husband. The Family Court has completely erred in law in rejecting the claim of the appellant wife on the ground that she had not furnished receipts of purchase of jewellery allegedly gifted in marriage by her parents.

99. In this regard, we may note that even from the findings returned by the Family Court, it is evident that the appellant wife had produced receipts of approximately Rs.1,71,000/- of the articles mentioned in the list of gifted items filed in the Family Court. The Family court has erred in not giving due consideration to the fact that in Indian Society, the parents of a girl collect jewellery for their daughter since her childhood. The fact that the appellant wife could not produce receipt of the purchase of jewellery claimed to have been gifted by her parents in the marriage could not be a reason to deny her Streedhan (the gifted items in her marriage) narrated categorically in her petition itself, moreso, in absence of categorical denial on the part of the respondent husband. Mere bald assertion in the written statement by the respondent that the list of gifted items filed by the wife in the Court was forged and fabricated is no answer to the categorical statement of the wife. The vague pleadings of the respondent husband in para-'9' of the written statement in reply to para-'9' of the plaint (extracted above) amounts to his admission about the specific contents of para-'9' of the plaint.

100. Having considered the above, taking all relevant factors into consideration, in the facts and circumstances of the case, considering the status of the parties, we are of the opinion that the appellant-wife is entitled for the permanent alimony and maintenance to the tune of Rs.15,00,000/- (15 lacs) as one time (gross sum) alimony. She is also entitled for Rs.10,00,000/- (10 lacs) as Streedhan gifted to her in marriage from both sides, i.e her parents and in-laws as also her relatives. The maintenance fixed for the wife to the tune of Rs.15,00,000/- also includes the maintenance for her minor daughter (at the time of the petition) looking to her claim put forth in the year 2011.

101. The amount fixed by us towards the permanent alimony of Rs.15,00,000/- is over and above (in addition to) Rs.5,00,000/- paid to the appellant under the interim maintenance order of this Court, the amount of permanent alimony fixed by the Family court under Section 25 of the Hindu Marriage Act. We may record, at the cost of repetition, that the Family Court had illegally denied Streedhan to the appellant wife by rejecting her claim under Section 27 of the Hindu Marriage Act. The amount of Rs.10,00,000/- (10 lacs) is quantified towards the cost of the Streedhan, which has been kept and utilized by the respondent, considering the fact that after 22 years of marriage, it is not possible for the Court to ask the respondent to return the articles mentioned in the list supplied by the appellant before the Family Court.

102. The abovementioned amount awarded by us to the wife shall be deposited before the Principal Judge/Family Court, Kanpur Nagar by the respondent husband in two installments, within a period of six months from the date of the delivery of the judgment, which shall be released in favour of the appellant wife on the application (as moved by her) as soon as the deposits are made.

103. Consequently, the judgment and order dated 14.5.2008 passed by the Principal Judge/Family Court, Kanpur Nagar in divorce petition no.529 of 2002 (renumbered as Case no.636 of 2005) (Amit Kumar @ Monu vs Smt Poonam @ Pinki) of the decree of judicial separation under Section 10 of the Hindu Marriage Act having been found to suffer from grave error of law is hereby set aside. The First Appeal no.501 of 2009 is accordingly, allowed. The Matrimonial petition no.636 of 2005 (old number 529 of 2002) filed on 8.10.2002 is hereby dismissed.

104. The First Appeal no.86 of 2021 filed by the appellant Smt. Poonam Jaiswal @ Pinki, the wife, arising out of Case no.1589 of 2011 under Sections 25 and 27 of the Hindu Marriage Act, is hereby allowed in the above terms.

105. In light of the observations made above, the First Appeal no. 907 of 2021 filed by the respondent husband namely Amit Kumar Jaiswal @ Monu stands dismissed.

106. No order as to costs.

Order Date :-31.10.2022 Harshita